

Publish, not Perish: Authors' Rights in a Rapidly Changing Scholarly Ecosystem



Melissa Cantrell, Scholarly Communication Librarian, University Libraries
melissa.cantrell@colorado.edu

I am not a lawyer and nothing in this presentation should be construed as legal advice.

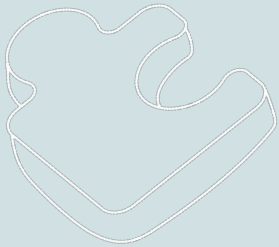


Agenda

1. Understanding Authors Rights
 - a. The Past
 - b. The Present
 - c. The Future
2. Current Trends
 - a. AI
 - b. Funding landscape
3. Leveraging Your Authors Rights
4. Questions



1. Understanding Authors' Rights



What are some examples of things you might want to do with your article (or other type of work) after it is published?

And...why is this important?

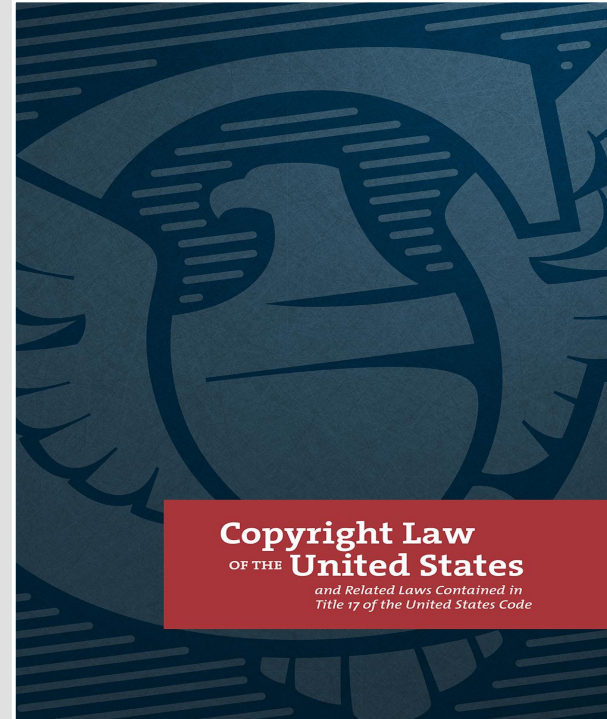


Author's Rights = Copyright

Copyright.gov

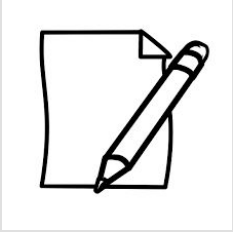
The exclusive right to:

- **Reproduce** the work
- **Prepare** derivative works
- **Distribute copies**
- **Display or Perform** the work
- **Grant permission to others** to use your work



About Your Copyright

BEGINS when you write it down or save it!



ENDS 70 years after you die...



MUST BE an Original *Expression*

NOT Protected:



Facts, data, laws

Ideas, concepts, principles,
discoveries

Lists of ingredients or contents

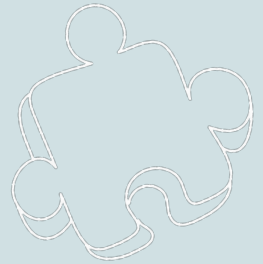
Procedures and processes

Methods of operation and systems

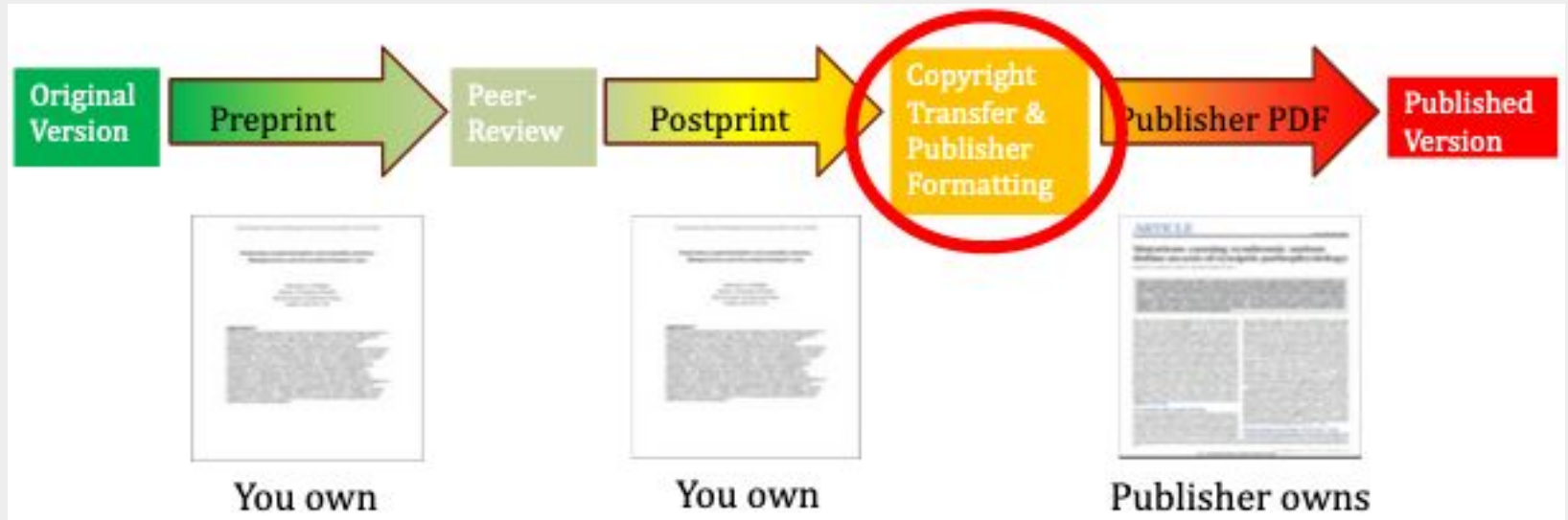
Incentivise creative works
Vs.
Advance culture through
the creation of new works



1a. The Past

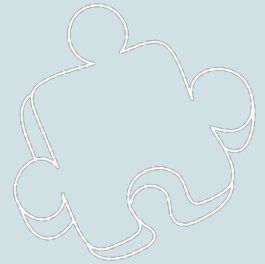


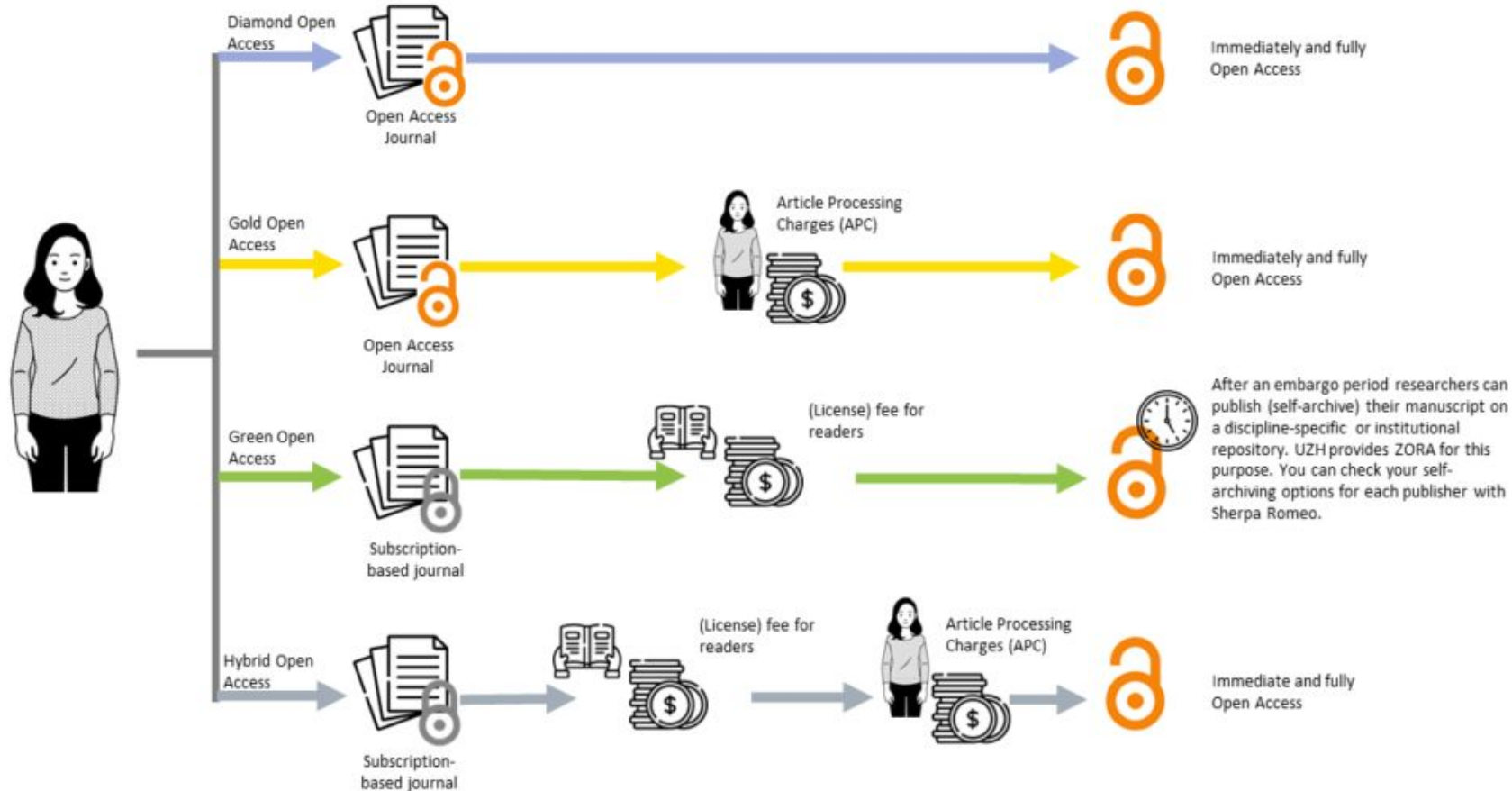
How copyright transfer works





1b. The Present





Learn about a journal's publication agreements

Open Policy Finder

- Directory of publishers' policies on copyright and self-archiving.
- Can help determine if a publisher or journal's publication agreements are the right fit for you.
- Limited information about journals.
- May contain out-of-date info.
- Publisher Policy Icons Explanation

Published Version	None CC BY
	Journal Website
OA Publishing	This pathway includes Open Access publishing
Embargo	No Embargo
Licence	CC BY 4.0
Copyright Owner	Authors
Location	Journal Website
Conditions	Published source must be acknowledged with citation Must link to published article Non-commercial use only
Accepted Version	None CC BY
	Any Repository, Funder Designated Location, Author's Homepage, +1
Embargo	No Embargo
Licence	CC BY 4.0
Copyright Owner	Authors
Location	Any Repository Author's Homepage Funder Designated Location Institutional Repository
Conditions	Published source must be acknowledged with citation Must link to published article Non-commercial use only
Submitted Version	Not Permitted

Find an OA Journal

- White Lists
 - [DOAJ \(Directory of Open Access Journals\)](#)
 - [COPE \(Committee on Publication Ethics\)](#)
 - [OASPA \(Open Access Scholarly Publishers Association\)](#)
 - [INSAP's Journals Online](#)
 - [African Journals Online](#)
- [ThinkCheckSubmit.org](#)
 - Check that your journal is legitimate and discoverable
- Consult with librarians at your campus

The graphic features a large red circle on the left containing a white exclamation mark and the word "THINK" in red. Below this, the text "Are you submitting your research to a trusted journal?" is written in white. Further down, a paragraph of white text asks how to ensure a reputable journal. On the right, three colored buttons (red, orange, green) with icons and the words "THINK", "CHECK", and "SUBMIT" are stacked vertically. To the right of these buttons, a paragraph of black text provides tips on confirming journal credentials. At the bottom, a black line of text encourages taking control of one's career at the website.

! THINK

Are you submitting your research to a trusted journal?

Publishing your research results is key to **advancing your discipline** – and your **career** – but with so many journals in your field, how can you be sure that you're choosing a **reputable, trustworthy** journal?

! THINK
✓ CHECK
> SUBMIT

Tips to **confirm** a journal's credentials and decide if it will help you **reach** the right audience with your research, and make an **impact** on your career.

Take control of your career at
thinkchecksubmit.org

CU Boulder Support for OA

- [CU Scholar](#) institutional repository
- General [Open Access Fund](#)
- Funding support through [memberships and transformative agreements](#)
- CU Boulder [Open Journals](#)
- [Open Monograph Fund](#)



University Libraries
UNIVERSITY OF COLORADO **BOULDER**

Breakdown of public trust

Unsustainable
funding structures

AI

Slop/Hallucination

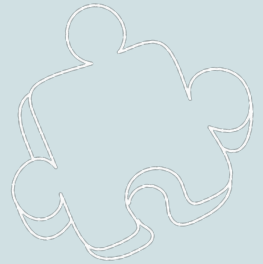
Peer Review Crisis

Replicability Crisis

Content Explosion



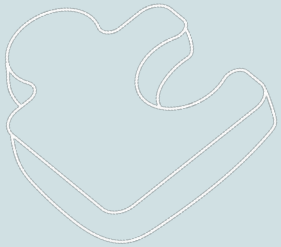
1c. The Future



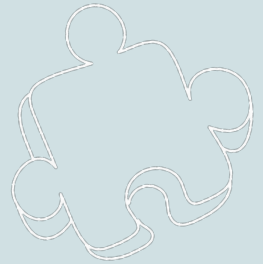
Emerging Areas of the Scholarly Ecosystem

1. Community and Scholar-led Initiatives
 - a. [ScholarLed](#), [Redalyc](#), [Copim](#)
2. Open Infrastructure
 - a. [Invest in Open Infrastructure \(IOI\)](#), [SciElo](#), [Public Knowledge Project](#)
3. Open Peer Review
 - a. PLOS, BioMed Central, BMJ, eLife, Royal Society Open Science

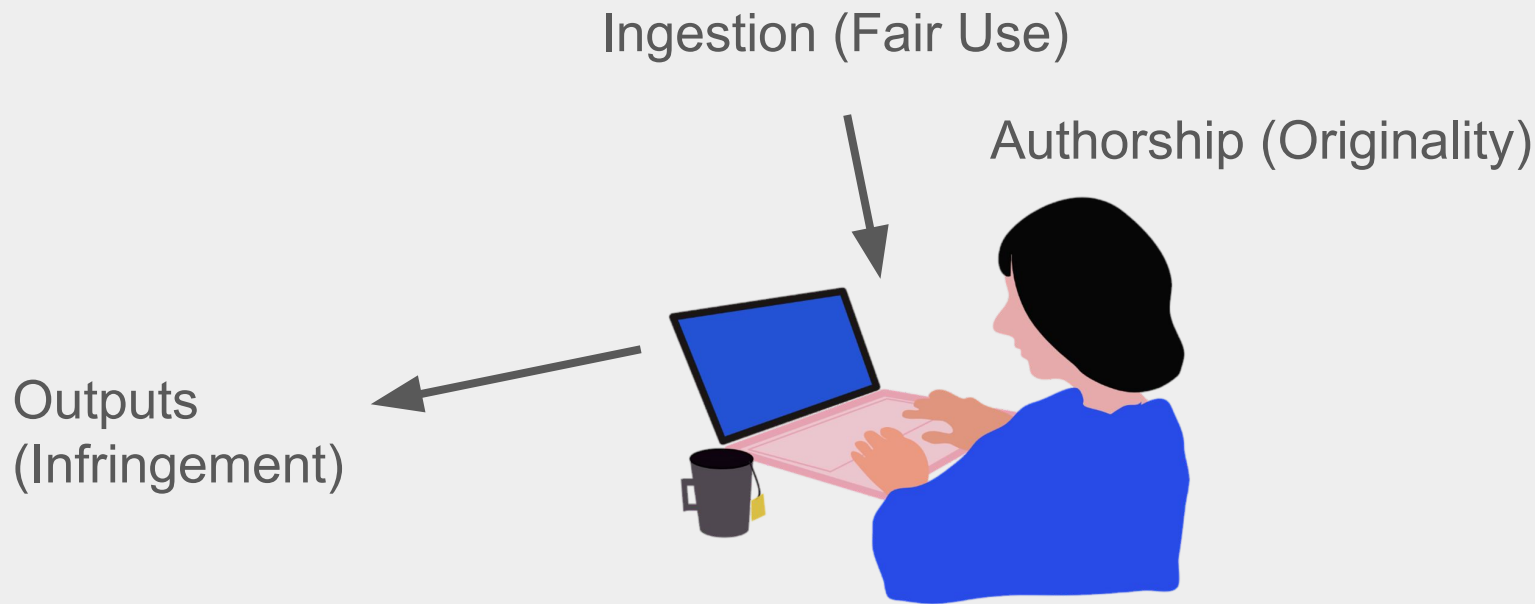
2. Current Trends in Publishing



2a. Authors' Rights and AI



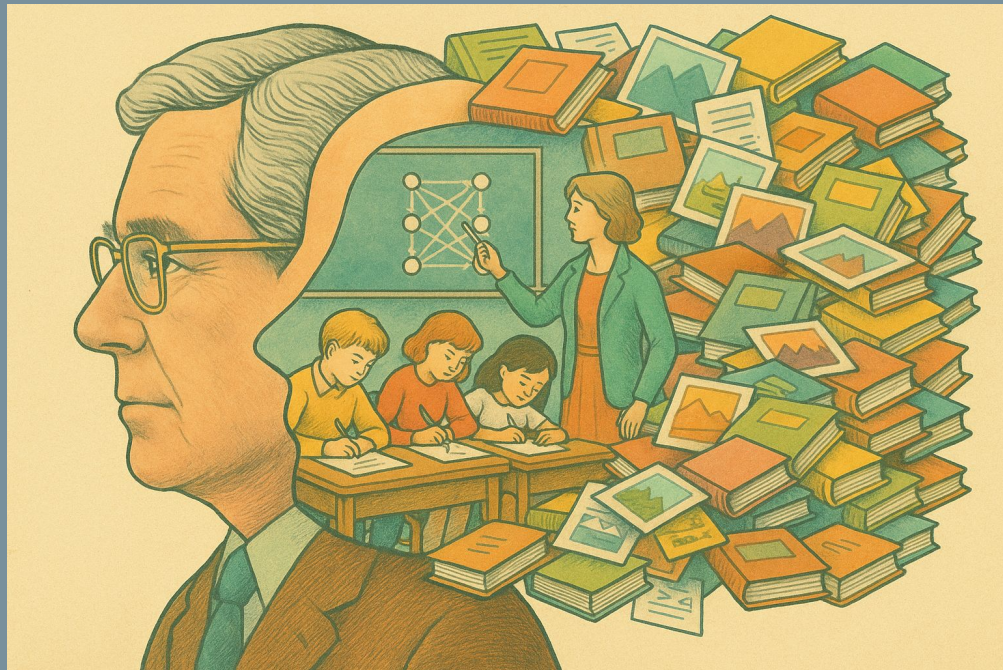
Three Fronts of Copyright and AI



Ingestion: (Mostly) a Victory for Fair Use

“Fair use is alive and well in the age of generative AI. Two opinions {...} make it undeniably clear that training generative AI models transforms the work they use, a vital component of fair use law.”

-Adam Eisgrau, Senior Director of AI, Creativity and Copyright Policy



Authorship: Testing the Originality Doctrine

THÉÂTRE D'OPÉRA SPATIAL



Image generated by Midjourney AI technology



Image submitted for copyright registration

The box is “gorged on data but with no taste for meaning”

-Ryan Calo, co-founder of the University of Washington Tech Policy Lab and the Center for an Informed Public



Outputs: Infringement and Substantial Similarity



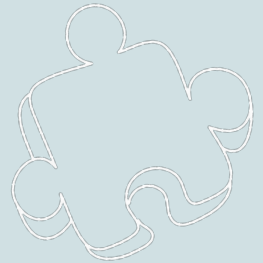
AI Implication for Peer Review and transparency in publishing

**A crisis of peer review
+
proliferation of generative AI
=
An opportunity?
OR
A breach of research integrity?**

How would you feel if you found out tomorrow that AI had been used to peer review one of your papers?

- A. Great! Most likely, AI only improved the critique of my work
- B. Disappointed and distrustful of the review
- C. My view wouldn't change - peer review is an imperfect system and AI can't hurt or help it
- D. Other?

2a. The Rapidly Changing Funding Landscape



Background

Federal agencies, and an increasing number of private funders, require researchers to make their findings publicly accessible through:

- creating data management plans.
- depositing data in publicly accessible repositories.
- depositing articles to publicly accessible repositories.

New compliance rules indicate no embargo on public access to these

This requires authors' rights retention. Seems simple, but...

Wiley:

Due to the new NIH requirements, Wiley's new PMC deposit policy is as follows:

For NIH-funded Articles published in any of Wiley's **fully Open Access journals**: Wiley will continue to handle PMC deposits upon issue publication with no changes to current procedures.

For NIH-funded Articles accepted for publication in any of Wiley's **Hybrid journals**, Authors will have one route to compliance:

1. Choose the open access publishing route and receive Wiley's deposit service, in compliance with the NIH Public Access Policy.

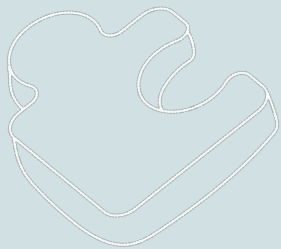
Springer:

- **NIH articles must be *immediately* accessible**: The new [NIH public access policy](#) applies to all NIH-funded articles accepted for publication from 01 July 2025*. This revised policy requires that articles supported by NIH are *immediately* publicly accessible upon publication via the PubMed Central repository, without embargo.
- **Springer Nature enables compliance via gold OA**: We enable authors to be fully compliant with the NIH Public Access policy through [gold OA publication](#). As well as being NIH-compliant, gold OA publication has many [benefits for authors and readers](#), including increased citation and usage, and greater public engagement.

The image features two black silhouettes of people from the waist up, facing each other and pulling on a horizontal rope. The person on the left is leaning forward, while the person on the right is standing more upright. The background is a solid light beige color. Centered between the two figures is a block of text.

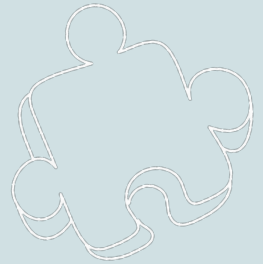
In response to these aggressive
publisher policies, NIH issued an RFI
to seek feedback on limiting allowable
publication costs

3. Leveraging Authors' Rights



Learn to read and
negotiate a publishing
agreement

3b. Activity



Assignment of copyright

Each author assigns to the Owner the copyright in the Article (where Crown Copyright is asserted, each author agrees to grant an exclusive publishing and distribution license). This assignment of rights includes but is not limited to the exclusive right to publish, reproduce, display, distribute and otherwise use the Article, or any part of the Article, in print, electronic and all other media (whether now known or later developed), in any form, in all languages, throughout the world, for the full term of copyright, and the right to license others to exercise all rights assigned herein and to prepare derivative works, effective when the Article is accepted for publication. This assignment includes the right to enforce the rights assigned hereunder against third parties.

No other intellectual property rights or rights in patents and trademarks are transferred to the Owner.

Authors' rights in the Article

Subject to the terms of this Journal Publishing Agreement, each author retains or is hereby granted certain rights to re-use the Article without permission from the Owner or payment to the Owner, as specified below. These rights are personal to each author and cannot be transferred. Each author shall, in connection with any such re-use of the Article, fully acknowledge and attribute the original publication of the Article.

Each author retains or is hereby granted the rights to:

- make copies of the Article (or part of the Article) to promote companies or products they own, whether or not such promotion is commercial;
- include the Article in a thesis or dissertation;
- extend the Article to a book, include the Article in a subsequent compilation of their own work, or re-use portions, excerpts, and their own figures, tables and images from the Article in their own new works (which in each case may be published with Elsevier or with a third party commercial or non-commercial publisher, at the author's discretion);
- create translations of the Article for non-commercial scholarly collaborations and sharing.

In addition, each author retains or is hereby granted the rights to use and share the Article for the following scholarly purposes:

- Publicly share the Preprint anywhere, at any time;
- Publicly share the Accepted Manuscript immediately on acceptance, attaching a CC BY-NC-ND end user license:
 - via the author's non-commercial personal homepage or blog;
 - update the previously posted Preprint on arXiv or RePEc with the Accepted Manuscript.
- Privately share the Accepted Manuscript immediately on acceptance, attaching a CC BY-NC-ND end user license:
 - via the author's research institute or institutional repository for internal institutional uses
 - as part of an invitation-only work group on commercial sites with which the publisher has a hosting agreement.
- Publicly share the Accepted Manuscript after the embargo period, attaching a CC BY-NC-ND end user license:
 - via non-commercial hosting platforms (such as the author's institutional repository);
 - via commercial sites with which the publisher has a hosting agreement;
 - as part of non-commercial Massive Open Online Courses.
- Privately share the Published Journal Article:
 - for the author's classroom teaching;
 - in presentations at meetings or conferences, including distribution of copies to the delegates attending such meetings for their personal use;
 - with known research colleagues for their personal use.

In the case of the Accepted Manuscript and the Published Journal Article, these author rights exclude all Commercial Uses not expressly agreed in writing by the Owner.

Copyright

A. COPYRIGHT

1. The Contributor assigns to Wiley-Blackwell, during the full term of copyright and any extensions or renewals, all copyright in and to the Contribution, and all rights therein, including but not limited to the right to publish, republish, transmit, sell, distribute and otherwise use the Contribution in whole or in part in electronic and print editions of the Journal and in derivative works throughout the world, in all languages and in all media of expression now known or later developed, and to license or permit others to do so.

Retained Rights

B. RETAINED RIGHTS

Notwithstanding the above, the Contributor or, if applicable, the Contributor's Employer, retains all proprietary rights other than copyright, such as patent rights, in any process, procedure or article of manufacture described in the Contribution.

Permitted Uses

C. PERMITTED USES BY CONTRIBUTOR

1. Submitted Version. Wiley-Blackwell licenses back the following rights to the Contributor in the version of the Contribution as originally submitted for publication:

a. After publication of the final article, the right to self-archive on the Contributor's personal website or in the Contributor's institution's/employer's institutional repository or archive. This right extends to both intranets and the Internet. The Contributor may not update the submission version or replace it with the published Contribution. The version posted must contain a legend as follows: This is the pre-peer reviewed version of the following article: FULL CITE, which has been published in final form at [Link to final article].

b. The right to transmit, print and share copies with colleagues.

2. Accepted Version. Re-use of the accepted and peer-reviewed (but not final) version of the Contribution shall be by separate agreement with Wiley Blackwell. Wiley-Blackwell has agreements with certain funding agencies governing reuse of this version. The details of those relationships, and other offerings allowing open web use, are set forth at the following website: <http://www.wiley.com/go/funderstatement>. NIH grantees should check the box at the bottom of this document.

3. Final Published Version. Wiley-Blackwell hereby licenses back to the Contributor the following rights with respect to the final published version of the Contribution:

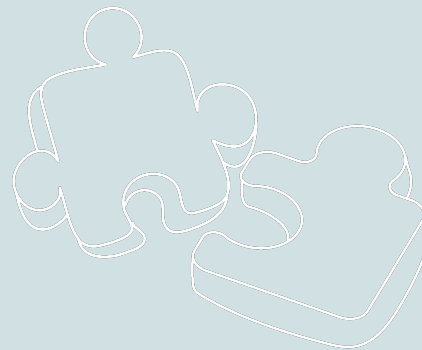
a. Copies for colleagues. The personal right of the Contributor only to send or transmit individual copies of the final published version in any format to colleagues upon their specific request provided no fee is charged, and further-provided that there is no systematic distribution of the Contribution, e.g. posting on a listserv, website or automated delivery.

Thank you!

Comments? Questions?

Slides posted @

<https://osf.io/uxndq/files/osfstorage>



General Questions:
crdds@colorado.edu

Reach me directly
melissa.cantrell@colorado.edu



Center for Research Data & Digital Scholarship

UNIVERSITY OF COLORADO **BOULDER**